

Lala @ Lakhan Jaiswal vs The State Of Madhya Pradesh on 3 July, 2023

Author: Anuradha Shukla

Bench: Anuradha Shukla

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IN THE HIGH COURT OF MADHYA PRADESH
AT JABALPUR
BEFORE
HON'BLE SMT. JUSTICE ANURADHA SHUKLA
ON THE 3rd OF JULY, 2023
CRIMINAL APPEAL No. 6149 of 2022

BETWEEN: -
LALA @ LAKHAN JAISWAL S/O SHRI RAJENDRA
JAISWAL, AGED ABOUT 24 YEARS, OCCUPATION:
LABOUR R/O AZAD NAGAR GALI NO. 2, POLICE
STATION KOTWALI SIDHI DISTRICT SIDHI (MADHYA
PRADESH)

(BY SHRI UMASHANKAR JAISWAL - ADVOCATE)

AND
THE STATE OF MADHYA PRADESH THROUGH STATION
MAJHAULI DISTRICT SIDHI (MADHYA PRADESH)

(BY SMT. SEEMA JAISWAL - PANEL LAWYER)

Reserved on : 26.06.2023
Pronounced on : 03.07.2023

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Th is appeal coming on for hearing this day, t h e cou
following:

JUDGMENT

This criminal appeal has been preferred against the judgment dated 24.06.2022 passed by the Third Additional Judge to First Additional Sessions Judge, Sidhi in S.T. No.137/2020, whereby the appellant was convicted under Section 392 of IPC and was sentenced to undergo 4 years rigorous imprisonment alongwith fine of Rs.1,000/- and in default of payment of fine to undergo further rigorous imprisonment for 6 months.

2. The case of prosecution was that on 18.07.2020 complainant Rajpal was passing through Sikra

forest on his way to village Barm Baba. He was riding a motorcycle. At around 9 PM as two motorcycles overtook him near Dhunne Banne Nala he had to stop his motorcycle. There were four persons on those motorcycles, who were wielding weapon like country made firearm; they forcibly took the keys of motorcycle, mobile phone and ATM card from the complainant and went towards Sidhi alongwith the motorcycle of complainant. A report of robbery was lodged in the police station Majholi, District Sidhi at Crime No.470/2020. After filing of charge-sheet, the case was tried against four persons and out of them three were acquitted while the appellant was convicted and sentenced as aforesaid.

3. The grounds raised in this appeal are that the learned Court below did not consider the facts and evidence on record and passed the judgment against principles of law; it was admitted by the complainant that appellant was not known to him and even in the test identification parade, he failed to identify the appellant; he was in fact a hostile witness and on his testimony only, the learned Court below had acquitted three other accused persons. Merely on the basis of recovery of looted items the appellant has been held guilty, but the same set of evidence was available against acquitted persons as well and despite similarity in facts, they were not found guilty, thus, the conviction against appellant cannot be sustained. Seizure witnesses namely Vineet Kumar Soni and Kamlesh Soni had turned hostile, still the Court below passed the judgment of conviction. The appellant alone could not have been convicted under Section 392 of IPC. There was no material to connect the appellant to the alleged offence. It is therefore, prayed that the judgment of conviction and sentence passed by the learned Court below be set aside and the appellant be acquitted in the matter.

4 . Learned Panel Lawyer for the State has supported the impugned judgement and has asserted that the finding of conviction and also the sentence passed against the appellant are well founded on the evidence available on record and has, therefore, prayed for dismissal of this appeal.

5. Heard learned counsel for the parties and perused the impugned judgment and evidence available on record.

6. From the record of Court below, it is evident that charges of Section 392/34, 420/34 and 482/34 of IPC as well as Section 25/27 of Arms Act were framed against the appellant, but he was convicted only under Section 392/34 of IPC, for which this appeal has been preferred.

7. According to prosecution story, the complainant Rajpal (PW-2) was robbed of his motor-cycle, mobile phone, a purse having four ATM cards and cash amount of Rs.2,500/- by four persons in the night of 18.07.2020. Alleged incident occurred at a deserted place, hence, there was no eye witness to the incident. The FIR (Ex.P/23) was lodged against unknown persons and it was also mentioned therein that complainant could not have a good look of robbers due to darkness. The test identification parade was conducted during investigation and a memo Ex.P/3 was prepared in this regard. It is significant to note that complainant Rajpal (PW-2) has stated in paragraph no.5 of his testimony that even in the test identification parade, he could not identify the robbers. Thus, memo of test identification report marked as Ex.P/3 which suggests correct identification of robbers by the complainant was not supported even by him during his Court testimony. He has also failed to

identify the accused persons during dock identification.

8. The record of Court below discloses that Executive Magistrate, who conducted the test identification parade, as mentioned in Ex.P/3 was not examined as witness. This fact finds mention in paragraph no.41 of the judgment. On the basis of this fact, it is established that crime which was alone seen by the complainant has not been proved against the appellant either on the basis of oral testimony or on the basis of test identification parade. Accordingly, there is no direct evidence against the present appellant having committed the offence of robbery. Same was the finding of learned trial Court in paragraph no.41 of his judgment where he has reached to the conclusion that complainant has failed to identify the appellant as a person committing the crime of robbery.

9. Subsequent paragraphs of the judgment disclose that the learned trial Court discussed the evidence relating to seizure of looted property for arriving at the finding about commission of crime. Paragraph no.43 of his judgment mentions that seizure witness Vineet Kumar Soni (PW-6) was not reliable for being hostile regarding the proceeding of seizure. There was another seizure witness namely Adarsh Tiwari (PW-7) whose testimony has been discussed in paragraph no.44 to 46 and in paragraph no.46, learned trial Court has observed that seizure proceeding was not conducted in presence of this witness. Thus, Court also found this witness unreliable on the point of seizure. It brings to the fact that testimony of only Investigating Officer was available about the credibility of seizure proceedings.

10. Ex.P/23 is the FIR, in which it is alleged that a motor-cycle, a purse containing four ATM cards, one mobile phone of MI company were looted in the incident. The FIR also reveals that looted motor-cycle was not having any number plate. Chasis number and engine number of that motor-cycle were not mentioned in the FIR. There is no further evidence on record which could disclose engine and chasis number of looted motor-cycle and IMEI number or other identification details of looted mobile phone.

11. Ex.P/11 is the seizure memo, on the basis of which, a mobile phone, a purse containing four ATM cards, photo of complainant, driving license and a motor-cycle without having any number plate was seized from the possession of appellant. Though, this seizure memo discloses that driving license of complainant and his photograph were seized by the Investigating Officer, but statements of S.P. Mishra (PW-9), Investigating Officer do not disclose the seizure of either of these two documents. Paragraph no.2 of his statement refers to seizure of only a mobile phone, four ATM cards and a motor-cycle. Even the photograph showing the picture of seized items does not contain the picture of any driving license or the photograph of complainant. There are only six items shown in that picture and they are four ATM cards, one mobile phone and one purse. It is very significant to know that the items seized as looted property were never placed under identification proceedings and complainant was never asked to identify whether these properties belonged to him or not. Further, there is no evidence on record to show that the seized ATM cards belong to the bank account maintained by complainant. Thus, there is no connection established between the items seized and the properties looted in the incident.

12. On examination of the reason assigned in judgment for convicting the appellant for committing robbery, it is revealed that in paragraph nos.49, 55 and 56, learned trial Judge observed that all the properties seized from the custody of appellant are looted properties, but as discussed above details of looted properties are not mentioned in FIR nor they were placed under identification proceedings. Interestingly, ownership of all the seized properties could have been easily tracked for example through IMEI details of mobile phone, through engine and chasis number of motor-cycle and through bank account details of ATM cards, but the Investigating Officer did not undertake any efforts to verify the ownership of seized properties. It is also interesting to note that in paragraph no.48 of judgment, learned trial Court come to the conclusion about the ownership of seized properties, on the basis of fact that these properties were given in interim custody of complainant. The order of interim custody of properties cannot replace the proceedings that were supposed to be undertaken during investigation.

13. Learned trial Court has expressed the opinion that appellant could not explain his possession over looted properties but this question remained unanswered how the trial Court reached to the conclusion that the properties seized from the possession of appellant were actually the looted properties unless this burden was discharged by the prosecution. No reverse owners can shift upon the appellant to explain the validity of his possession.

14. On the basis of above discussion, it is concluded that there is no direct evidence on record, on the basis of which, it can be proved that appellant was involved in the commission of robbery because no one identified him either at pretrial or during trial stage as a member of group that committed robbery. Further, there is no legal evidence available on record which proves that the properties allegedly seized from the possession of appellant were actually the properties looted in the crime.

15. Consequently, this appeal is allowed and conviction of appellant under section 392/34 of IPC is hereby set-aside.

16. The appellant is in custody, therefore, it is directed to release him immediately. Fine amount deposited by the appellant shall be refunded to him and the order passed by Court below regarding disposal of properties is affirmed.

17. Registry is directed to send a copy of this judgment immediately to t h e trial Court through Sessions Judge, District Sidhi for information and necessary compliance.

(ANURADHA SHUKLA) JUDGE pnm